



File No.: EXP202211440

RESOLUTION OF ARCHIVE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On August 11, 2022, the Spanish Agency for Data Protection became aware through a complaint of certain facts that could violate the legislation on data protection. The Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD) to investigate IBERIA LÍNEAS AÉREAS DE ESPAÑA, S.A., OPERATOR with NIF A85850394 (hereinafter the complained party or IBERIA) in relation to the following facts:

The complaint indicates that the complained party has enabled a space on its website for users to include documentation with health information related to vaccination against COVID-19 for the management of their trip operated by the complained party, understanding that the complained party does not have any legal authorization for such action, nor does it constitute a Health Authority. It also states that they do not adequately inform about the processing and management of such data. According to the complaint, the health information related to vaccination against COVID-19 that users include in this space aims to facilitate the management of the trip operated by the airline, as it can be directly used for boarding; however, although the documents are stored in the private space of the users themselves, the airline could have access to them to validate them for boarding authorization. Images of the section of the complained party's website where the upload of health documentation is requested are provided.

SECOND: On October 27, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate investigation proceedings in relation to IBERIA LÍNEAS AÉREAS DE ESPAÑA, S.A., OPERATOR to verify these claims and, if applicable, the proper observance of the regulations.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation proceedings to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, having knowledge of the following aspects:

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On January 13, 2023, a request for information was made to IBERIA, and on January 27, 2023, the response was received at the electronic headquarters of this Agency, which, in summary, indicates the following:

****Regulatory Framework****

- On January 30, 2020, the Director-General of the World Health Organization (WHO) declared a public health emergency of international concern due to the global outbreak of the coronavirus causing severe acute respiratory syndrome type 2 (SARS-CoV-2), which causes the disease known as coronavirus disease 2019 (COVID-19). On March 11, 2020, the WHO published an assessment classifying COVID-19 as a pandemic. According to the International Health Regulations, an event of this nature constitutes a risk to the public health of States due to the international spread of a disease. For these circumstances, the Regulations provide for health measures, either temporary or permanent, that States may apply to individuals, luggage, cargo, containers, means of transport, goods, and/or packages, in response to a public health emergency of international concern. Among the measures to be applied to individuals, the performance of medical examinations,

prophylactic measures, or other recognized health measures that prevent or control the spread of the disease are included, such as isolation, quarantine, or subjecting the traveler to public health observation. The evolution of the pandemic and the emergence of new variants of special concern have required the adoption of different measures to ensure greater control over international traveler traffic.

- Since the beginning of the implementation of health controls, through the Resolution of June 29, 2020, of the Directorate-General for Public Health, Quality, and Innovation, regarding health controls to be carried out at points of entry in Spain, subsequently replaced by the Resolution of July 24, 2020, of the Directorate-General for Public Health, Quality, and Innovation, regarding health controls to be carried out at points of entry in Spain, the epidemiological situation concerning the COVID-19 pandemic has been changing, not only in Spain but globally.

Similarly, the mechanisms for surveillance and health control that countries have been implementing at points of entry have also evolved in order to control the importation of cases from passengers arriving from high-risk countries.

The updated list of high-risk countries or areas is reviewed periodically, and its update is published on the website of the Ministry of Health and on the SpTH website: <https://www.spth.gob.es>. The update of the reviews of the list of countries or areas becomes effective seven days after its publication, with the aim of allowing transport companies, travel agencies, and tour operators to adjust the informational measures for passengers.

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In Spain, health controls for international passengers at points of entry have been regulated through various Resolutions of the General Directorate of Public Health, published on the website of the Government of Spain and referenced in the Regulatory Diligence Borders COVID-19, with more than one hundred regulatory references.

- In relation to travel agencies, tour operators, and air or maritime transport companies, as well as any other agent that sells tickets either individually or as part of a combined trip, for example, Royal Decree-Law 23/2020, of June 23, establishes that they must inform passengers, at the beginning of the ticket sales process to Spain, of the obligation for travelers to present the Health Control Form upon arrival, which will include the declaration of having a Diagnostic Test for Active Infection for SARS-CoV-2 with a negative result conducted within seventy-two hours prior to arrival for those coming from high-risk countries/areas.

Furthermore, this Royal Decree-Law establishes that the airport manager and airlines will collaborate with the Ministry of Health for the implementation of health control measures, a fundamental aspect in ensuring the proper implementation of the measure. In this regard, in application of the duty of collaboration provided for in section 4 of the Sixth Additional Provision of Royal Decree-Law 23/2020, airlines will check prior to boarding that passengers destined for Spain have the QR code generated through the website www.spth.gob.es, or the Spain Travel Health-SpTH application.

- The Recommendation (EU) 2020/912 of the Council, of June 30, on the temporary restriction of non-essential travel to the European Union and the possible lifting of such restriction, established a list of third countries whose residents were exempt from travel restrictions to the European Union, as well as a set of specific categories of persons also exempt from those restrictions, regardless of their place of origin. This Recommendation has been modified on several occasions to adapt the list of third countries to epidemiological circumstances or to modify the criteria for the preparation of said list.

- Regulation (EU) 2021/953 concerning a framework for the issuance, verification, and acceptance of interoperable COVID-19 vaccination, diagnostic test, and recovery certificates (EU digital COVID certificate) in order to facilitate free movement during the COVID-19 pandemic, modified by Regulation (EU) 2022/1034 of the European Parliament and of the Council of June 29, 2022, establishes the characteristics of health certificates for vaccination, diagnostic testing, and recovery within the framework of international travel, with the aim of facilitating free movement and gradually lifting

restrictions on this free movement in the context of the COVID-19 pandemic.

However, this Regulation leaves it to the Member States to limit the fundamental right to free movement for public health reasons, in order to limit the spread of SARS-CoV-2, always based on specific and limited public interest reasons such as the safeguarding of public health.

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Since the publication of the Regulation, the characteristics of the EU digital COVID certificates have been applied in Spain as health requirements for international passengers, and they have largely served as the basis for the health controls implemented at points of entry.

Similarly, the characteristics of the EU digital COVID certificate have been extended to accept as valid vaccination certificates, diagnostic tests, or recovery certificates issued by third countries without equivalence agreements.

- In this context, since the onset of COVID-19, air operators and companies have been subjected to specific health requirements, which are also related to the traveler's circumstances and vary across the different States in which they operate.

These requirements are reflected in the verification that every passenger boarding a flight with a company complies with the health regulations of the destination country to avoid being returned to their place of origin. The necessary documentation to be presented to border control authorities in each country, or to satisfactorily prove to each of them the circumstances that authorized the traveler to enter the country and not be returned to their place of origin, has continuously varied at the discretion of the numerous resolutions and subsequent updates issued by the competent authorities in each of those countries.

In most cases, the rules issued by national authorities have made airlines responsible for verifying the necessary documentation of each passenger before allowing them to board the flight in question, so that transporting a passenger to their destination without all the necessary documentation or requirements could entail:

- The obligation to transport the passenger back to their place of origin, at the airline's expense, and
- The imposition of fines or administrative sanctions for failing to diligently comply with their documentation verification obligations.

- On May 5, 2023, the Director-General of the World Health Organization declared: "Yesterday, the Emergency Committee met for the fifteenth time and recommended that I declare the end of the public health emergency of international concern. I have accepted that advice. Therefore, I declare with great hope the end of COVID-19 as an international health emergency."

On July 5, 2023, Order SND/726/2023, of July 4, from the Ministry of Health, declaring the end of the COVID-19 health crisis, was published in the BOE.

Application "Aircheck"

- "Aircheck" is a platform or application designed for travelers to upload certain documents in advance of their trip, such as, for example, ID cards, visas, vaccination certificates, etc.

IBERIA states and certifies that this functionality is only available for transits occurring from Madrid to all destinations in the United States to verify compliance with COVID-19 requirements.

Furthermore, IBERIA indicates that choosing to use this mechanism is a voluntary decision by the passenger and in no case a procedure imposed by the company.

- On the Iberia Routes website, it is confirmed that IBERIA has enabled a space on its website for passengers on flights from Madrid to all destinations in the U.S. to upload all the necessary documentation to fly.

- In the video published on the IBERIA website, the steps that the passenger must follow in case they choose to use this platform are described:

- The passenger must answer affirmatively to the question "Are you fully vaccinated?" to upload the health documentation related to COVID-19, vaccination certificate, and COVID-19 test.

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- Once the passenger adds a document, they are shown the notice:

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“Documentation received! We will now verify it. Your tracking number is: ...”, and the option to add new documents is provided.

- The necessary documents for flying can be uploaded from 72 hours before the flight departure, and to check their status or upload new files, the passenger must enter the tracking number and the reservation code or locator.

- Once the documentation is verified by the company, if it is correct, an email is sent to the passenger stating: “We inform you that all the required documentation for your flight (...) has been verified and is correct. Please keep this email as it may be required for you to show it at the boarding gate.

If, on the contrary, there is information that remains to be provided or that requires correction, an email is sent to the passenger informing them of such circumstances: “(...) Remember that you still have documentation to upload, you can attach it at any time. (...)”

Information provided to interested parties

- Regarding the information offered to the passenger, IBERIA refers to that contained on the U.S. Government website related to international travel. To this end, in the section “Frequently Asked Questions on COVID-19 Vaccinations and Testing for International Travel,” certain aspects are brought to the attention of users that both non-U.S. citizens and non-immigrants, as well as U.S. citizens, must observe as a consequence of the guidelines imposed by the Biden Administration through the Order “Implementing Presidential Proclamation on Advancing the Safe Resumption of Global Travel During the COVID-19 Pandemic” (hereinafter, the “CDC Order”), which is provided as DOCUMENT 1 of entry REGAGE23e00005549140.

The website states:

- Currently, foreign air travelers to the United States must be fully vaccinated and provide proof of vaccination status before boarding a flight to the United States, with only limited exceptions.

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- Proof of vaccination must be a paper or digital record issued in English by an official source and must include the name and date of birth of the traveler, as well as the product used for vaccination and the date(s) of administration of all doses received by the traveler.

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- Regarding U.S. citizens, the CDC Order exempts, since June 12, 2022, the requirement to provide a negative test result for both vaccinated and unvaccinated travelers.

- In the video published on IBERIA's website describing the steps that the passenger must follow when opting for this platform, it is verified that, at the moment the passenger proceeds to upload the documentation, they are warned about the considerations affecting the processing of their personal data and are also offered access to the additional information contained in the personal data protection policy:

The data controller is Iberia L.A.E. S.A. Operadora, Sole Proprietorship (hereinafter, “Iberia”) with registered office at Calle Martínez Villegas 49, 28027 Madrid. Your data will be processed for boarding management, based on the execution of transportation. The user may, at any time, exercise the rights

of opposition, access, portability, rectification, limitation, and deletion of data. You can find the details of the information presented here through the URL

<https://www.iberia.com/es/informacion-sobre-privacidad/>

- In the personal data protection policy published on the website, under the heading When and why do we collect “sensitive personal data”? reference is made to health data related to COVID-19, see Privacy Policy Diligence, and under the heading In what cases do we carry out automated processing of your data? it states:

There are situations in which we will carry out total or partially automated processing of your data. For example:

[...]

When you use our online application Aircheck to check in advance whether your “COVID19” travel documentation meets the requirements of your destination country. Once again, the use of this application is voluntary, and you can always opt for documentation review through our agents at the boarding gate. Additionally, if you use Aircheck and do not obtain an initial validation of the documentation submitted, we offer you the option to review it online again and for this second time, one of our agents to review it manually.

- A link to IBERIA's personal data protection policy remains visible on its website from the moment the user is booking flights and before proceeding to fill in the necessary data.

Once the passenger decides to continue with the process through “Fill in passenger data,” they are warned of the necessary requirements to be able to make their flight as a result of demands stemming from the Government of the United States and are also given access to the Company's personal data protection policy.

In the next phase of the process in which the user must fill in the contact details for the passenger(s), information is also made available to them.

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in relation to the processing of your personal data.

Furthermore, once the purchase is processed, IBERIA sends a confirmation email, reiterating the warnings made throughout the entire process and providing information regarding data protection as a consequence of the contractual relationship binding IBERIA and the passenger.

Validation of health documentation

If the passenger chooses to use Aircheck for the online verification of their documentation, they can provide the required information, including the vaccination certificate, between 72 and 4 hours before their flight. This data is stored on Salesforce servers.

The verification of the documentation is carried out by IBERIA's Back Office employees:

- First, it is automatically verified, through F-SECURE, that the files do not contain malware; and
- Next, through Optical Character Recognition (OCR) technology in Salesforce, the validity of the passport is also automatically reviewed.

In cases where the documentation does not pass any of these filters, a KO is generated and communicated to the requesting passenger. In the remaining cases, a manual check is then carried out to verify that the necessary documents have been provided to meet the requirements set by the destination country.

The teams that have access to this information are:

- Network Connection Support (NCS): a team that belongs to the Operations Control Center (CCO), whose functions consist of resolving incidents affecting customers regarding air operations. In this case, 22 NCS agents are responsible for reviewing the documentation uploaded to Aircheck.
- CCPO: a team composed of call center agents who can access these records to verify information in case of complaints, incidents, etc.
- Those ground assistance agents of IBERIA who are controlling boarding for flights within the scope of

Aircheck at Madrid-Barajas airport will also have access to a web application of IBERIA (hereinafter, interchangeably, "Quick Service Point" or "QSP") in order to corroborate whether, in relation to each passenger, all necessary documentation has already been received and verified for travel, or if any document is still pending receipt and review. At this point, the indicated application shows two possible options:

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- OK on the screen: the passenger has all the necessary documents to travel, so no additional action is required by the agent; or

- KO on the screen: in this case, the titles of the documents that the agent must validate with the passenger before they can fly are also displayed on the screen. Once these documents are checked, if they comply with legal requirements, the agent can "confirm" in the web application that the passenger has the necessary documentation to travel.

IBERIA states that all personnel belonging to the indicated Departments (NCS, CCPO Call Center, and ground assistance staff) are employees of IBERIA and have committed to confidentiality and secrecy obligations. By way of example, it provides:

Data retention period

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IBERIA states that the data provided through Aircheck is stored visible in Salesforce for a period of 30 days, being available only to those IBERIA employees who need to access it for the performance of their duties.

After this period, the data is blocked for a period of 5 years, to address any potential liabilities that may arise from the processing carried out in accordance with the provisions of Article 1,964 of the Civil Code, remaining only accessible to a limited scope of certain system administrator profiles.

IBERIA states that the data is not communicated to U.S. authorities unless expressly requested by them. In this regard, such communication is made under the protection of what is established in the Order issued by the CDC.

The CDC Order outlines the data that must be transferred and the obligations imposed on companies: [...]

The designated information consists of full name, address while in the United States, primary contact phone number, secondary or emergency contact phone number, email address, date of birth, airline name, flight number, departure city, departure date and time, arrival city, arrival date and time, and seat number. Airlines and operators must maintain the designated information for crew members.

These data elements are necessary to identify and locate passengers and crew members who may have the coronavirus disease 2019 (COVID-19) or who have been exposed to a person with COVID-19 or another concerning communicable disease [...].

Passengers must provide the designated information, to the extent that it exists, to airlines and operators. Airlines and operators must collect the designated information from passengers and retain it for 30 days from the flight's departure, unless it is transmitted otherwise to the government of the United States. The CDC requires a retention period of 30 days [...].

Aside from the above, IBERIA does not carry out any transfer or communication to third-party recipients.

Security Measures

IBERIA outlines the technical and organizational measures it has implemented regarding the processing "Digitalization of Aircheck Embarkations":

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(...)

It also provides the document Annex 1 Risk Report, which specifies the risks and measures implemented related to the Digitalization of Aircheck Embarkations, among which is:

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Risk 4778.- Risk of violation of the rights and freedoms of the data subjects arising from the processing of personal data with automated decisions.

Inherent risk level: high

Control name: human oversight has been carried out in automated decisions.

Residual risk level: low

LEGAL GROUNDS

I

Competence

In accordance with the functions assigned to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Processing of special categories of personal data

Article 9 of the GDPR, which regulates the processing of special categories of personal data, establishes the following:

"1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.

2. Paragraph 1 shall not apply when one of the following circumstances applies:

a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;

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b) the processing is necessary for the fulfillment of obligations and the exercise of specific rights of the data controller or the data subject in the context of labor law and social security and protection, to the extent that it is authorized by Union law or the laws of the Member States or a collective agreement under the law of the Member States that establishes adequate safeguards for the respect of fundamental rights and the interests of the data subject;

c) the processing is necessary to protect vital interests of the data subject or another natural person, in the event that the data subject is not physically or legally capable of giving consent;

d) the processing is carried out, within the scope of its legitimate activities and with appropriate safeguards, by a foundation, an association, or any other non-profit organization, whose purpose is political, philosophical, religious, or trade union, provided that the processing relates exclusively to current or former members of such organizations or to persons who maintain regular contact with them in relation to their purposes and provided that the personal data are not communicated outside of them without the consent of the data subjects;

e) the processing concerns personal data that the data subject has made manifestly public;

- f) the processing is necessary for the formulation, exercise, or defense of claims or when courts act in the exercise of their judicial functions;
- g) the processing is necessary for reasons of essential public interest, based on Union law or the laws of the Member States, which must be proportional to the pursued objective, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;
- h) the processing is necessary for purposes of preventive or occupational medicine, assessment of the worker's capacity, medical diagnosis, provision of health or social care assistance or treatment, or management of health and social care systems and services, based on Union law or the laws of the Member States or under a contract with a health professional and without prejudice to the conditions and safeguards set out in paragraph 3;
- i) the processing is necessary for reasons of public interest in the field of public health, such as protection against serious cross-border threats to health, or to ensure high standards of quality and safety of health care and of medicines or medical products, based on Union law or the laws of the Member States that establish adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy;
- j) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, based on Union law or the laws of the Member States, which must be proportional to the pursued objective, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject.

3. The personal data referred to in paragraph 1 may be processed for the purposes mentioned in paragraph 2, letter h), when their processing is carried out by a professional subject to the obligation of professional secrecy, or under their responsibility, in accordance with Union law or the laws of the Member States or with the standards established by the competent national authorities, or by any other person also subject to the obligation of secrecy in accordance with Union law or the laws of the Member States or the standards established by the competent national authorities.

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or data related to health."

III

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, according to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller, at the time of obtaining this data, shall provide all the information indicated below:

- a) the identity and contact details of the controller and, where applicable, of their representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second subparagraph, reference to the appropriate safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide..."

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The treatment will provide the data subject, at the time when personal data is obtained, with the following necessary information to ensure fair and transparent data processing:

- a) the period during which the personal data will be retained or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and its rectification or erasure, or the restriction of its processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any other relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

IV

Data protection by design and by default

Article 25 of the GDPR establishes the following:

"1. Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity posed by the processing to the rights and freedoms of natural persons, the data controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing, in order to comply with the requirements of this Regulation and protect the rights of data subjects.

2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data which are necessary for each specific purpose of the processing are processed. This obligation shall apply to the amount of personal data collected, to..."

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the extent of their processing, their retention period, and their accessibility. Such measures will ensure in particular that, by default, personal data is not accessible, without the intervention of the individual, to an indeterminate number of natural persons.

3. An approved certification mechanism in accordance with Article 42 may be used as an element that certifies compliance with the obligations established in paragraphs 1 and 2 of this article."

V

Impact assessment regarding data protection

The impact assessment regarding data protection is regulated in Article 35 of the GDPR as follows:

"1. When it is likely that a type of processing, particularly if it uses new technologies, by its nature, scope, context, or purposes, poses a high risk to the rights and freedoms of natural persons, the data controller shall carry out, prior to the processing, an assessment of the impact of the processing

operations on the protection of personal data. A single assessment may address a series of similar processing operations that pose similar high risks.

2. The data controller shall seek the advice of the data protection officer, if appointed, when carrying out the impact assessment regarding data protection.

3. The impact assessment regarding data protection referred to in paragraph 1 shall be required in particular in the case of:

- a) systematic and comprehensive evaluation of personal aspects of natural persons based on automated processing, such as profiling, and on which decisions are based that produce legal effects concerning the natural persons or that significantly affect them in a similar manner;
- b) large-scale processing of special categories of data referred to in Article 9, paragraph 1, or of personal data related to criminal convictions and offenses referred to in Article 10, or
- c) systematic large-scale monitoring of a publicly accessible area.

4. The supervisory authority shall establish and publish a list of the types of processing operations that require an impact assessment regarding data protection in accordance with paragraph 1. The supervisory authority shall communicate these lists to the Committee referred to in Article 68.

5. The supervisory authority may also establish and publish a list of the types of processing that do not require impact assessments regarding data protection. The supervisory authority shall communicate these lists to the Committee.

6. Before adopting the lists referred to in paragraphs 4 and 5, the competent supervisory authority shall apply the consistency mechanism provided for in Article 63 if those lists include processing activities related to the offering of goods or services to data subjects or to the monitoring of their behavior in several Member States, or processing activities that may substantially affect the free movement of personal data within the Union.

7. The assessment shall include at least:

- a) a systematic description of the envisaged processing operations and the purposes of the processing, including, where appropriate, the legitimate interest pursued by the data controller;
- b) an assessment of the necessity and proportionality of the processing operations in relation to their purpose;
- c) an assessment of the risks to the rights and freedoms of the data subjects referred to in paragraph 1, and
- d) the measures envisaged to address the risks, including safeguards, security measures, and mechanisms that ensure the protection of personal data, and to demonstrate compliance with this Regulation, taking into account the rights and legitimate interests of the data subjects and other affected persons.

8. Compliance with the approved codes of conduct referred to in Article 40 by the respective controllers or processors shall be duly taken into account when assessing the impact of the processing operations carried out by such controllers or processors, particularly for the purposes of the impact assessment regarding data protection.

9. Where appropriate, the controller shall seek the views of the data subjects or their representatives regarding the intended processing, without prejudice to the protection of public or commercial interests or the security of the processing operations.

10. When the processing is based on Article 6, paragraph 1, letters c) or e), and has its legal basis in Union law or in the law of the Member State applicable to the data controller, such law regulates the specific processing operation or set of operations in question, and an impact assessment regarding data protection has already been carried out as part of a general impact assessment in the context of the adoption of that legal basis, paragraphs 1 to 7 shall not apply unless Member States consider it necessary to carry out such an assessment prior to the processing activities.

11. If necessary, the controller shall examine whether the processing is in compliance with the impact assessment regarding data protection, at least when there is a change in the risk posed by the processing operations."

VI

Principles relating to processing

Letter c) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

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VII

Conclusion

The complaint filed against IBERIA informs this Agency that the entity has enabled a space on its website for users to include health information related to COVID-19 vaccination, without having any legal authorization or being constituted as a health authority, as well as failing to adequately inform about the processing and management of such data.

After the actions taken, it has been verified that IBERIA has a platform or application, "Aircheck," which aims for travelers to upload certain documents in advance of their trip, such as, for example, ID cards, visas, vaccination certificates, etc. This functionality is only available for those transits occurring from Madrid to all destinations in the United States to verify compliance with COVID-19 requirements.

The technical and organizational measures that IBERIA has implemented in relation to the processing "Digitalization of Aircheck Embarkations" have been detailed in the Facts section.

IBERIA states that choosing to use this mechanism is a voluntary decision of the passenger and in no case a procedure imposed by the company.

At the moment the passenger proceeds to upload the documentation on the website, they are warned about the considerations affecting the processing of their personal data and are also offered access to the additional information contained in the personal data protection policy.

In the personal data protection policy published on the website, under the heading "When and why do we collect 'sensitive personal data'?" reference is made to health data related to COVID-19, and under the heading "In what cases do we carry out automated processing of your data?" it states:

There are situations in which we will carry out total or partially automated processing of your data. For example:

[...]

When you use our online application Aircheck to check in advance if your "COVID-19" travel documentation meets the requirements of your destination country. Once again, the use of this application is voluntary, and you can always opt for the review of documentation through our agents at the boarding gate. Additionally, in the event of using Aircheck and not obtaining an initial validation of the submitted documentation, we offer you the option to review it online again, and this second time, one of our agents will manually review it.

The data protection policy is accessible to the user, with a visible link on the website, from the moment the user starts the flight reservation until they finalize the purchase. Furthermore, once the purchase is processed, IBERIA sends a confirmation email.

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of the same, where the warnings made throughout the entire process are reiterated and information regarding data protection is provided as a consequence of the contractual relationship linking IBERIA and the passenger.

If the passenger chooses to use Aircheck for the online verification of their documentation, they may provide the required information, including the vaccination certificate, between 72 and 4 hours before their flight.

This data is stored on Salesforce servers for a period of 30 days, being accessible only to those IBERIA employees who need to access it for the performance of their duties.

The verification actions of the documentation are carried out by IBERIA employees, who are committed to confidentiality and secrecy obligations.

First, automatic checks of the documentation uploaded by the passenger are carried out through F-SECURE and OCR. In cases where the documentation does not pass any of these filters, a KO is generated and communicated to the requesting passenger. In the remaining cases, a manual check is then conducted to verify that the necessary documents have been provided to meet the requirements set by the destination country.

After the 30-day period, the data is blocked for a period of 5 years, to address any potential liabilities that may arise from the processing carried out in accordance with the provisions of Article 1,964 of the Civil Code, remaining only accessible to certain system administrator profiles.

IBERIA states that it does not transfer health data and does not carry out any communication to third-party recipients.

From the actions taken, it follows that the system for verifying documentation related to COVID vaccination was available on the IBERIA website, and it was always voluntary to do so. If the passenger chose to provide the documentation, they always did so voluntarily, being informed of the processing that would be carried out and having appropriate security measures for that processing. Article 27 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, enshrines the principle of typicity in the context of the sanctioning power of the Administration, as it prescribes that only violations of the legal order that are expressly provided for as such by a law constitute administrative infractions.

According to the doctrine of the Constitutional Court, the principles inspiring criminal law are applicable, with certain nuances, to sanctioning administrative law, given that both are manifestations of the punitive order of the State, as reflected in the Constitution itself in its Article 25, which imposes the necessity for the normative predetermination of infringing conduct and the corresponding sanctions, allowing for a sufficient degree of certainty (*lex certa*) regarding those behaviors and knowing what to expect concerning the attached.

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responsibility and the eventual sanction, there must be a precise correlation between the unlawful act and the action attributed, through a correct and adequate subsumption of the proven facts into the applicable sanctioning type.

According to the principles of sanctioning administrative law, a series of elements must be present to understand that an administrative infringement has occurred. First, for administrative responsibility to exist, it is necessary that the person being accused has carried out an action or omission. If this conduct, whether active or omitted, is regulated in administrative norms as an infringement, then it will be granted such nature. Likewise, the principle of responsibility requires that the alleged responsible party has acted culpably or willfully, the former being the case where the actions are conscious and voluntary, and the latter being those that are involuntary but result in a breach of the norm. Another essential element of administrative infringements is the effect of time, as only those behaviors that are classified as infringements at the time they are committed can be punished.

In the present case, there is no evidence that any action different from that explained by the accused party has occurred.

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Thus, in accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to IBERIA LÍNEAS AÉREAS DE ESPAÑA, S.A., OPERATOR. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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